Discuss and Possibly Adopt Revisions to Board Policy DC (Local)

Recommendation:
That the Board of Trustees adopt updated Local Board Policy DC Employment Practices.

Explanation:
The Administration recommended revisions to Board Policy DC Employment Practices. The Administration recommends that the updated Local Board Policy DC be adopted as presented.

Policy Reference: DC Local

Recommended by:

Dr. Ted Landry
Interim Superintendent of Schools

Personnel Duties

The Superintendent or designee shall define the qualifications, duties, and responsibilities of all positions and shall ensure that job descriptions are current and accessible to employees and supervisors.

Posting Vacancies

The Superintendent or designee shall establish guidelines for advertising employment opportunities and posting notices of vacancies. These guidelines shall advance the Board's commitment to equal opportunity employment and to recruiting well-qualified candidates. Current District employees may apply for any vacancy for which they have appropriate qualifications.

Applications

applications shall be confirmed before a contract is offered for a contractual position and before hiring or as soon as possible thereafter for a noncontractual position.

[For information related to the evaluation of criminal history records, see DBAA.]

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Employment Of Contractual Personnel

The Superintendent has sole authority to make recommendations to the Board regarding the selection of contractual personnel.

The Board retains final authority for employment of contractual personnel. However, from the day following the last regular Board meeting in March until the day of the first regular Board meeting in the following school year, the Board delegates to the Superintendent the authority to employ contractual personnel in positions up to and including coordinator. The Superintendent shall inform the Board of staff hired under this authority.

[See DCA, DCB, DCC, and DCE as appropriate]

Employment Of Noncontractual Personnel

Note: For employment of a bus driver related to a Board member or the Superintendent, see DBE(LEGAL).

The Board delegates to the Superintendent final authority to employ and dismiss noncontractual employees on an at-will basis. [See DCD]

Employment Assistance Prohibited

No District employee shall assist another employee of the District or of any school district in obtaining a new job if the employee knows, or has probable cause to believe, that the other employee engaged in sexual misconduct regarding a minor or student in violation of the law. Routine transmission of an administrative or personnel file does not violate this prohibition. [See CJ for prohibitions relating to contractors and agents and DH(EXHIBIT) for the Educators' Code of Ethics.]

Retired Employee Surcharge

For any employee hired July 1, 2025 or thereafter, the District shall collect any surcharge and other required fees it must pay to the Teacher Retirement System (TRS) or any other retirement program on behalf of any employee who is currently receiving benefits from TRS or another retirement program. Because the District does not incur such expenses in the employment of other staff members, the affected employee's pay will be reduced to offset this expense.

Exemption

Employees hired prior to July 1, 2025 are exempt from this provision and the District shall continue to pay the surcharge and other required fees.

Pay Protection

Deductions shall not reduce the employee's pay below the applicable state minimum salary schedule (if the minimum salary schedule applies to the employee's position) or below the applicable minimum wage rate for hourly employees.

Payment of Excess Amounts

If the amount owed by the employee exceeds the amount that can be deducted from the employee's paycheck, the employee shall submit payment to the District by personal check.

Non-Payment Consequences

If, after receiving notice, the employee fails to reimburse the District the amount owed, the employee may be terminated or suspended without pay until all outstanding balances are paid.

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Employee Responsibility

It is the employee's responsibility to understand when and how surcharges will be applied. Detailed information regarding employment after retirement is available in the TRS publication "Employment After Retirement". Employees may contact TRS at 800-223-8778 or 512-542-6400, or visit the TRS website for additional information.